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Case Number: 20STCV47123 Hearing Date: September 8, 2026 Dept: 509

Vista Land, LLC v. EIJ, Inc. et al.

MOTION FOR LEAVE TO FILE FOURTH AMENDED COMPLAINT

MOVING PARTY: Plaintiff Vista Land, LLC

RESPONDING PARTY(S): Defendants Frank Sillman; Warlyn, Inc.; Mark Lerman; Leora Goren and Brenda Greiner, Co-Trustees of the Goren-Greiner Family Trust; Jan Goren, Trustee of the Goren, Marcus, Masino & Marsh Certified Public Accountants LLP Retirement Trust Account; and Mark Pollock and Sharon Lee Pollock, Trustees of the Pollock Living Trust

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This action arises out of the sale of real property located at 5529 Vanalden Street in Tarzana, California (The Property). Plaintiff Vista Land, LLC, (Plaintiff) alleges it purchased the real property after being the highest bidder at a Trustee's foreclosure on September 8, 2020, where it purchased the Second Deed of Trust on The Property. Plaintiff claims it is the owner of The Property, free and clear, and not subject to any other interests claimed defendants Raymond Robinson; David Robinson; R&R Real Properties LLC; Frank Sillman; Gregory Royston; AWBCO, LLC; Warlyn, Inc.; Mark Lerman; Leora Goren and Brenda Greiner, Co-Trustees of the Goren-Greiner Family Trust; Jan Goren, Trustee of the Goren, Marcus, Masino & Marsh Certified Public Accountants LLP Retirement Trust Account; and Mark Pollock and Sharon Lee Pollock, Trustees of the Pollock Living Trust.

Plaintiff now moves for leave to amend Plaintiff's Third Amended Complaint (TAC) and for leave to file a Fourth Amended Complaint. Frank Sillman (Sillman) and Warlyn, Inc.; Mark Lerman; Leora Goren and Brenda Greiner, Co-Trustees of the Goren-Greiner Family Trust; Jan Goren, Trustee of the Goren, Marcus, Masino & Marsh Certified Public Accountants LLP Retirement Trust Account; and Mark Pollock and Sharon Lee Pollock, Trustees of the Pollock Living Trust (Warlyn Defendants) opposed.

TENTATIVE RULING:

Plaintiff's Motion for Leave to File a Fourth Amended Complaint is GRANTED.

The standalone Amended Complaint must be filed within 10-days and timely served on all parties as required by law.

Plaintiff is ordered to give notice.

DISCUSSION:

Motion for Leave to File Fourth Amended Complaint

I. Judicial Notice

Pursuant to the Warlyn Defendants' request, the Court takes judicial notice of this Court's September 17, 2025, Minute Order.

II. Legal Standard

"The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Pro. §473, subd. (a)(1).)

California courts employ a liberal approach to amendment of pleadings in light of a strong policy favoring resolution of all disputes between parties in the same action. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939.) Pursuant to this policy, requests for leave to amend will normally be granted unless (a) the party seeking to amend has been dilatory in bringing the proposed amendment; and (b) the delay in seeking leave to amend will cause prejudice to an opposing party. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.) Absent a showing of prejudice, delay in seeking an amendment alone does not justify denial of leave to amend. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-65.)

"[T]he court's discretion will usually be exercised liberally to permit amendment of the pleadings." (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428.) If a "motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." (*Morgan v. Superior Court of Cal. in and for Los Angeles County* (1959) 172 Cal.App.2d 527, 530; see *Arthur L. Sachs, Inc. v. City of Oceanside* (1984) 151 Cal.App.3d 315, 324 [denial of leave to amend on the eve of trial was error absent a showing a prejudice].)

III. Analysis

A motion to amend must be accompanied by a separate declaration specifying: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rule of Court, rule 3.1324(b).) The Declaration of Zachary D. Schorr satisfies this requirement.

Plaintiff states "[t]he proposed fourth amended complaint will add an eleventh cause of action for violation of Civil Code section 2924c and correct the contents of Exhibit X and all references thereto. The eleventh of action arises from the same harm and circumstances as the present action, namely the wrongful nonjudicial foreclosure and subsequent sale of the Property. Plaintiff is alleging no new facts, this is simply an effort to clarify its claims and expressly provide for relief based on Civil Code section 2924c, which was something we thought was already at issue in the case." (Schorr Decl. ¶10.)

Sillman and the Warlyn Defendants oppose independently, but on similar grounds. Sillman and the Warlyn Defendants argue that Plaintiff was dilatory in seeking amendment and that the amendment would unduly prejudice the defendants. However, absent a showing of prejudice, delay in seeking an amendment alone does not justify denial of leave to amend. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-65.) Therefore, the Court turns to the prejudicial effects this amendment would have on Sillman and the Warlyn Defendants.

Sillman and the Warlyn Defendants argue that this amendment would require significant discovery that could not be completed before the December 1, 2026, trial date. The Warlyn Defendants argue this amendment would “possibly require the engagement of an expert or multiple experts on this new issue, and require extensive discovery, including the deposition of EIJ, and its principals Armen Eskijian and Chris Eskijian, who Vista Land has long since dismissed from this lawsuit on March 11, 2025.” (Opp. at p. 7:14-18.) Sillman argues this amendment would require him “to answer or demur, conduct new discovery, locate and depose third-party witnesses, possibly re-depose parties to the action, evaluate experts, and prepare a dispositive challenge while simultaneously preparing jury instructions, motions in limine, exhibits, witnesses, and trial briefs.” (Opp. at p. 9:13-16.) All opposing defendants share similar concerns about the availability of dates sufficient to file demurrers and fully challenge this new pleading.

However, the addition of this new cause of action does not change the facts of this action. The new proposed amendment includes a single cause of action that rests on facts such as “Plaintiff cured the alleged default on Vanalden on or around February 11, 2021 by tendering the full reinstatement amount of \$1,392,462.99 to Trustee SBS” and “Defendants accepted the reinstatement amount and thereby acknowledged that Plaintiff had cured the alleged default.” (Prop. 4AC at ¶¶141-142.) These factual allegations are mirrored in the operative complaint. (TAC ¶¶40-41.) Indeed, this cause of action clarifies ambiguities in the TAC as to Plaintiff’s legal theory of recovery, not the underlying facts guiding this action since at least the filing of the TAC on June 30, 2023. When as here, the same set of facts merely support a different legal theory, no prejudice can result because the defendant has already had the opportunity to investigate the underlying facts. (*Duchrow v. Forrest* (2013) 215 Cal.App.4th 1359, 1378, [“If the same set of facts supports merely a different theory ... no prejudice can result.”]) While these allegations go to the heart of this action, this amendment does nothing more than clarify the legal theory of recovery. Therefore, there is no undue prejudice against the opposing parties that would warrant denying leave. This decision is in line with the court’s liberal policy of permitting amendments to the pleadings so that the action may be decided on its merits. (*Howard v. County of San Diego*, supra, 184 Cal.App.4th at p. 1428.)

Further, the Court is aware that the filing of the Fourth Amended Complaint would moot the Warlyn Defendant’s pending motion for summary judgment. (*State Compensation Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1131 [The filing of an amended complaint moots motions directed at superseded pleading].) However, even if the Warlyn Defendants’ motion for summary judgment was granted, the Court could still allow amendment following the determination of the motion for summary judgment. (See *Bostrom v. County of San Bernardino* (1995) 35 Cal.App.4th 1654, 1663.) Therefore, there appears no undue prejudice by allowing amendment.

This Court takes no position at this time on the accuracy of the amendment proposed by the Plaintiff. Rather, the “better course of action” is to permit the amendment, “and then let the parties test its legal sufficiency in other appropriate proceedings.” (*Atkinson v. Elk Corp.*, supra, 109 Cal.App.4th 739, 760.) The Court is aware of the impending December 1, 2026, trial date and the January 11, 2027, five-year deadline. However, given the limited scope of this amendment, the trial date does not appear in jeopardy at this time. There appears to be sufficient time to file responsive pleadings.

Accordingly, Plaintiff’s Motion for Leave to File a Fourth Amended Complaint is GRANTED.

The standalone Fourth Amended Complaint must be filed within 10-days and timely served on all parties as required by law.

Plaintiff is ordered to give notice.

IT IS SO ORDERED.

Dated: September 8, 2026 _____

Randolph M. Hammock

Judge of the Superior Court